

DiamlerChrysler Financial v. Fibrow

CF7774

PLAINTIFF'S MOTION TO AMEND JUDGMENT

This is a collections case. Plaintiff secured a default judgment against defendant on 01/16/08 in the amount of \$20,828.27. The Judgment has since been renewed, and now stands at \$49,033.25. Before the Court this day is a motion by plaintiff-creditor to include various alias used by defendant-debtor.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar **shall** include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on plaintiff's failure to include the required language, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes. Should plaintiff elect to refile the motion, this Court will require – as it does with any post-judgment motion to amend – personal service upon the defendant-debtor.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.